

WHACKY AUCTIONS

POPIA PRIVACY NOTICE & PRIVACY POLICY

Version 1.0 | Effective date: 12 September 2026

This Privacy Notice explains how Whacky Auctions collects, uses, stores, shares and protects personal information when people use the Whacky Auctions website, mobile application, auction services, customer support channels and related services in South Africa.

1. Who we are

Whacky Auctions is an auction business and digital auction platform operating in South Africa. For purposes of the Protection of Personal Information Act 4 of 2013 (POPIA), Whacky Auctions is the responsible party for personal information that it determines how and why to process.

Whacky Auctions may use service providers (called operators under POPIA) to process information on its behalf, for example hosting, communications, payment processing, delivery, analytics, fraud prevention and customer-support providers.

2. Scope of this policy

This policy applies to personal information processed through the Whacky Auctions website, app, auction registration, bidding, checkout, payment, delivery or collection arrangements, marketing, support enquiries, complaints and other business interactions.

It does not replace specific notices that may be shown at the point where particular information is collected. If a specific notice conflicts with this policy, the more specific notice will apply to that processing.

3. What personal information we may collect

Depending on how a person uses Whacky Auctions, we may collect:

- Identity and account information: name, surname, username, age or date-of-birth confirmation, and information needed to verify identity or bidder eligibility where required by law or auction rules.
- Contact information: mobile number, email address, delivery or collection address and other contact details supplied to us.
- Auction and transaction information: bidder registration details, bids placed, bid timestamps, winning bids, lots viewed or purchased, order history, invoices, refunds and customer-service records.
- Payment information: payment status, transaction references and limited billing details. Full payment-card details should ordinarily be handled by the relevant payment service provider rather than stored by Whacky Auctions.
- Technical information: IP address, device type, operating system, browser or app version, identifiers, login activity, crash logs and security-related logs.
- Communications: emails, support requests, complaints, reviews, feedback and other messages sent to Whacky Auctions.
- Marketing preferences: subscription status, consent records and preferences regarding promotional communications.
- Fraud, safety and compliance information: information reasonably necessary to detect suspicious activity, enforce auction rules, prevent misuse, resolve disputes or comply with legal obligations.

4. Where we obtain personal information

We may obtain personal information:

- directly from the person when they create an account, register to bid, place a bid, purchase an item, contact us, subscribe to marketing or otherwise interact with Whacky Auctions;
- automatically from the website, app, cookies, logs and similar technologies;
- from payment, delivery, identity-verification or other service providers where this is necessary for a transaction or lawful business purpose;
- from public or lawful third-party sources where reasonably necessary for fraud prevention, debt recovery, legal compliance or dispute resolution.

5. Why we process personal information

Whacky Auctions may process personal information to:

- create and manage user accounts and bidder registrations;
- operate auctions, record bids, determine auction outcomes and communicate results;
- process purchases, payments, refunds, delivery and collection arrangements;
- issue invoices, statements and transactional notifications;
- verify identity or eligibility where legally required or reasonably necessary;
- provide customer support and respond to queries, complaints or disputes;
- protect users, Whacky Auctions and the platform against fraud, unauthorised access, abuse and other security risks;
- maintain legally required auction, accounting, tax and business records;
- improve the platform, diagnose faults, analyse service performance and develop new features;
- send direct marketing where permitted by POPIA and applicable law;
- comply with court orders, lawful requests, statutory obligations and regulatory requirements;
- establish, exercise or defend legal claims and enforce Whacky Auctions' terms and auction rules.

6. Grounds on which we process information

Whacky Auctions processes personal information only where POPIA permits it. Depending on the circumstances, processing may be necessary to perform a contract with the person, comply with a legal obligation, protect a legitimate interest of the person, pursue the legitimate interests of Whacky Auctions or a third party, or where the person has consented.

7. Is providing information compulsory?

Some information is voluntary. Other information is necessary to register an account, participate in an auction, complete a purchase, meet bidder-registration requirements, receive goods or comply with law. If required information is not provided, Whacky Auctions may be unable to register the person, accept a bid, complete a transaction or provide the relevant service.

8. Who we may share personal information with

Whacky Auctions does not sell personal information. We may disclose personal information only where reasonably necessary and lawful, including to:

- payment processors and banks involved in a transaction;
- hosting, cloud, software, communications, analytics, security and customer-support providers;
- couriers, delivery companies or collection partners where needed to fulfil an order;
- professional advisers such as accountants, auditors, insurers and legal advisers;
- debt-recovery or fraud-prevention service providers where lawful and necessary;
- regulators, law-enforcement bodies, courts or public authorities where disclosure is required or permitted by law;
- a purchaser, investor, successor or adviser involved in a genuine sale, restructuring or transfer of all or part of the business, subject to appropriate confidentiality and data-protection measures.

Where another party processes personal information on Whacky Auctions' behalf, Whacky Auctions will take reasonable steps to require appropriate confidentiality and security safeguards.

9. Payments

Online payments may be processed by third-party payment providers. Whacky Auctions may receive a payment confirmation, transaction reference, amount, payment method and related status information. The payment provider's own privacy terms may also apply to information it collects directly.

10. Cross-border processing

Some technology or service providers may process or store information outside South Africa. Where personal information is transferred to another country, Whacky Auctions will take reasonable steps to ensure the transfer complies with section 72 of POPIA, including by relying on adequate legal protection, contractual safeguards, consent where appropriate, or another lawful basis.

11. Retention of information

Whacky Auctions keeps personal information only for as long as it is reasonably needed for the purpose for which it was collected, to meet legal, tax, accounting, auction-record, dispute or security requirements, or to establish or defend legal claims. When information is no longer required, it will be deleted, destroyed, de-identified or otherwise handled in accordance with POPIA and applicable retention obligations.

Different categories of information may have different retention periods. Whacky Auctions may retain transactional and legally required records after an account is closed where the law or a legitimate record-keeping need requires this.

12. Security safeguards

Whacky Auctions will use reasonable and appropriate technical and organisational measures to protect personal information against loss, unauthorised access, misuse, alteration or disclosure. Measures may include access controls, authentication, secure hosting, encryption where appropriate, logging, backups, staff or contractor confidentiality requirements and security monitoring.

No internet service can guarantee absolute security. Users must also protect their passwords, devices and account credentials and should notify Whacky Auctions promptly if they suspect unauthorised use of their account.

13. Security compromises

If Whacky Auctions has reasonable grounds to believe that personal information has been accessed or acquired by an unauthorised person, it will take the steps required by POPIA, which may include notifying the Information Regulator and affected data subjects as soon as reasonably possible, subject to any lawful delay.

14. Cookies, analytics and similar technology

The website or app may use cookies, local storage, software-development kits or similar technologies to keep users signed in, maintain auction sessions, remember preferences, protect accounts, measure service performance and understand how the platform is used. Where consent is required for a particular technology, Whacky Auctions will request it through the relevant interface.

Users may be able to control cookies through their browser or device settings. Blocking essential technologies may prevent some platform functions from working correctly.

15. Direct marketing

Whacky Auctions will send electronic direct marketing only where permitted by section 69 of POPIA and other applicable law. Where consent is required, Whacky Auctions will request it before sending such marketing. Existing customers may receive marketing about Whacky Auctions' own similar products or services where the law permits this.

Every electronic marketing message will provide a reasonable way to opt out. A person may withdraw marketing consent or object to direct marketing at any time without charge, other than ordinary communication costs.

16. Auction automation and profiling

The platform may automatically record bids, apply bid increments, display the current leading bid, close an auction at the configured closing time and identify the highest valid bid in accordance with the applicable auction rules. These functions execute auction instructions and rules rather than being used to make unrelated eligibility decisions about a person's character or behaviour.

Whacky Auctions may also use automated tools to flag suspicious or unusual activity for security or fraud-prevention review. Where POPIA restricts a solely automated decision that has legal or substantial effects, Whacky Auctions will apply the safeguards required by law.

17. Children

Whacky Auctions is intended for adults who are legally capable of entering into auction transactions. Users must be at least 18 years old to register and bid unless Whacky Auctions expressly provides a lawful alternative. Whacky Auctions does not intentionally collect children's personal information for ordinary bidder accounts.

18. Your rights under POPIA

Subject to POPIA and PAIA, a data subject may have the right to:

- ask whether Whacky Auctions holds personal information about them and request access to that information;
- request correction or deletion of personal information that is inaccurate, irrelevant, excessive, out of date, incomplete, misleading or unlawfully obtained, where the law allows;
- object to certain processing on reasonable grounds where POPIA provides that right;
- withdraw consent where processing is based on consent, without affecting processing that was lawful before withdrawal;
- object at any time to processing for direct marketing;

- request information about the identity of third parties who have had access to their personal information where applicable;
- lodge a complaint with the Information Regulator.

Whacky Auctions may need to verify the identity of the requester before giving access to or changing personal information. Some requests may be limited by POPIA, PAIA, legal privilege, another person's rights, statutory record-retention duties or other applicable law.

19. How to exercise privacy rights

Privacy requests should be sent to the Whacky Auctions Information Officer using the contact details below. The request should describe the information or action requested clearly enough for Whacky Auctions to identify and respond to it.

Responsible party	Whacky Auctions PTY LTD
Information Officer	Sandeep Rugbee
Privacy / POPIA email	rugs.san88@gmail.com
Business address	497 Ontdekkers Road, Florida Hills, Gauteng
Website / app	Whacky Auctions website and mobile application
Country	South Africa

20. PAIA and access to records

Requests for access to records that fall under the Promotion of Access to Information Act 2 of 2000 (PAIA) will be handled in accordance with Whacky Auctions' PAIA Manual and the applicable PAIA process. The PAIA Manual should be made available through the Whacky Auctions website and as otherwise required by law.

21. Complaints to the Information Regulator

A person who believes that their personal information has been processed unlawfully may lodge a complaint with South Africa's Information Regulator.

Information Regulator	South Africa
POPIA complaints email	POPIAComplaints@inforegulator.org.za
Telephone	010 023 5200 Toll-free: 0800 017 160
Address	Woodmead North Office Park, 54 Maxwell Drive, Woodmead, Johannesburg, 2191

22. Changes to this policy

Whacky Auctions may update this policy when its services, technology, suppliers or legal obligations change. The current version will be published on the website or app with an updated effective date. Where a material change requires additional notice or consent, Whacky Auctions will take the steps required by law.

23. Legal framework

This policy is intended to support compliance with the Protection of Personal Information Act 4 of 2013 (POPIA), the Promotion of Access to Information Act 2 of 2000 (PAIA), and other applicable South African law. It should be read together with the Whacky Auctions Terms and Conditions, Auction Rules, PAIA Manual and any specific collection notices displayed to users.

END OF POLICY